

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schwartz	Team: Squad #11	CCRB Case #: 201408701	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 08/23/2014 12:12 AM	Location of Incident: in front of § 87(2)(b) 77th Precinct stationhouse	18 Mo. SOL 2/23/2016	Precinct: 77		
Date/Time CV Reported Sat, 08/23/2014 1:30 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 08/23/2014 1:30 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Juan Moreno	03602	935351	077 PCT
2. POM Melvin Cordero	26046	950232	077 PCT
3. POM Yoan Delacruz	21906	950296	077 PCT
4. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . SGT Juan Moreno	Force: In front of § 87(2)(b) Sgt. Juan Moreno used chokeholds against § 87(2)(b)	A . Unsubstantiated
B . POM Melvin Cordero	Abuse: In front of § 87(2)(b) PO Melvin Cordero refused to provide his shield number to § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated
C . POM Yoan Delacruz	Abuse: In front of § 87(2)(b) PO Yoan Delacruz refused to provide his name and shield number to § 87(2)(b) and § 87(2)(b)	C . Unsubstantiated
D . SGT Juan Moreno	Force: In front of § 87(2)(b) Sgt. Juan Moreno restricted the breathing of § 87(2)(b)	D . Unsubstantiated
E . SGT Juan Moreno	Discourtesy: In front of § 87(2)(b) Juan Moreno spoke rudely to § 87(2)(b)	E . Unsubstantiated
F . An officer	Discourtesy: At the 77th Precinct stationhouse, an officer spoke rudely to § 87(2)(b)	F . Officer(s) Unidentified
G . An officer	Off. Language: At the 77th Precinct stationhouse, an officer made remarks to § 87(2)(b) based upon his sex.	G . Officer(s) Unidentified

Case Summary

On August 23, 2014, at 12:12 a.m., Sgt. Juan Moreno, PO Melvin Cordero and PO Yoan Delacruz of the 77th Precinct, drove past § 87(2)(b) in Brooklyn, attempted to handcuff § 87(2)(b) after he refused to provide identification when observed drinking from an open container. § 87(2)(b) who resisted arrest, alleged that during his struggle with PO Cordero and Sgt. Moreno, they grabbed at his chest and neck, and made contact with his neck near his collarbone, but not high enough on his neck to choke him or restrict his breathing. Once § 87(2)(b) was handcuffed, the officers attempted to escort him to their vehicle when § 87(2)(b)'s friends, § 87(2)(b) and § 87(2)(b) asked for the officers' shield numbers. While Sgt. Moreno eventually provided his shield number, PO Cordero and PO Delacruz allegedly refused the repeated requests (**Allegations B and C**). After § 87(2)(b) was seated in the back of the RMP, his other friend, § 87(2)(b) approached the vehicle and attempted to open the door. § 87(2)(b) also resisted arrest. § 87(2)(b) was taken to the ground to be cuffed, after which point § 87(2)(b) approached Sgt. Moreno and shouted at him in protest. Sgt. Moreno allegedly grabbed § 87(2)(b) by the neck, applied pressure, and pushed him backward while still holding onto his neck (**Allegation A**). § 87(2)(b) had to regain his breath and composure after Sgt. Moreno let go (**Allegation D**). § 87(2)(b) alleged that at some point during the incident, Sgt. Moreno told him to "shut the fuck up" (**Allegation E**). When § 87(2)(b) and § 87(2)(b) were in the cells at the 77th Precinct stationhouse, and § 87(2)(b) complained about the tightness of his handcuffs, an officer allegedly told him, "shut the fuck up," "stop being such a bitch," and "stop being such a pussy" (**Allegations F and G**). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

Mediation, Civil and Criminal Histories

This case was unsuitable for mediation. The June 12, 2015 inquiry was sent to the NYC Comptroller's office regarding whether § 87(2)(b) or § 87(2)(b) has filed a Notice of Claim regarding this incident is pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This complaint is § 87(2)(b) and § 87(2)(b)'s first with the CCRB (encl.1e-h). Sgt. Moreno has been a member of the NYPD for ten years. PO Cordero and PO Delacruz have been members of the NYPD for three years. The refusal to provide shield number allegation against PO Delacruz in this case is the first CCRB allegation against him. None of the officers has any substantiated CCRB allegation against him (encl.1a-d).

Findings and Recommendations

Allegations not pleaded

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b). None of the civilians alleged a chokehold was used on § 87(2)(b) § 87(2)(b)'s video footage of the incident shows an unidentified officer holding § 87(2)(b) on his chest from behind, and it is unclear if the officer's arm is around § 87(2)(b)'s neck, § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Explanation of Subject Officer Identification

§ 87(2)(b) and § 87(2)(b) gave differing and generalized descriptions of the officers who allegedly used discourteous and offensive language at the station house; § 87(2)(b) believed it was a uniformed officer in a white shirt, but § 87(2)(b) did not believe he was a senior officer.

§ 87(2)(g)

§ 87(2)(b) The prisoner holding pen roster did not indicate a particular officer guarding the cells on that night (encl. 12u). § 87(2)(g)

Allegation A—Force: In front of § 87(2)(b) Sgt. Juan Moreno used chokeholds against § 87(2)(b)

Allegation D—Force: In front of § 87(2)(b) Sgt. Juan Moreno restricted the breathing of § 87(2)(b)

Allegation E—Discourtesy: In front of § 87(2)(b) Sgt. Juan Moreno spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that while Sgt. Moreno and PO Cordero were struggling with him to get him in cuffs, he heard unidentified officers saying, “Shut the fuck up,” to § 87(2)(b) and § 87(2)(b). § 87(2)(b) saw officers take § 87(2)(b) to the ground, but he did not allege seeing force used against any other civilians (encl. 3a-e).

§ 87(2)(b) stated that § 87(2)(b) was taken to the ground, but did not allege witnessing any further force used against § 87(2)(b). § 87(2)(b) alleged that when he approached to complain about the officers arresting his friends, Sgt. Moreno grabbed him around the neck and squeezed, and then shoved him while holding his neck. In doing so, Sgt. Moreno briefly restricted § 87(2)(b) breathing. § 87(2)(b) denied that he complained to any officer that he had difficulty breathing. § 87(2)(b) alleged that Sgt. Moreno told him to “shut the fuck up” at some point during the incident (encl. 6a-d). Neither § 87(2)(b) nor § 87(2)(b) sought any medical attention as a result of this incident.

§ 87(2)(b) did not allege any force on behalf of § 87(2)(b) other than him being grabbed by officers. He did not allege witnessing any force used against § 87(2)(b) although he stated that § 87(2)(b) told him after the incident that he had been hit in the neck. He did not allege any officer used discourteous language at the scene of the arrest (encl. 5a-e). § 87(2)(b) was uncooperative with the investigation (encl. 14h).

The available video footage did not capture any officer grabbing either § 87(2)(b) or § 87(2)(b) by the neck or an officer telling anyone to “Shut the fuck up (encl. 2d-e).”

Sgt. Moreno denied grabbing § 87(2)(b)'s neck or seeing any other officer do so. He did not recall § 87(2)(b) or anyone complaining about his friends' arrests, and categorically denied grabbing any civilian around the neck. He did not hear any civilian complain that any officer

grabbed his neck. At some point he heard someone make the comment that “he” could not breathe or that someone else could not breathe, but he did not know who because the crowd was yelling things and it was difficult to know who said what, but he denied that he had ever been aware of anyone having trouble breathing (encl. 8a-g). PO Cordero also denied that he or any other officer grabbed § 87(2)(b) by the neck. PO Cordero did not observe Sgt. Moreno grab § 87(2)(b) or any civilian by the neck, or use any force against any civilian. PO Cordero was not aware of any civilian complaining during the incident that an officer had grabbed him by the neck or he was having trouble breathing (encl. 7a-s). PO Delacruz denied that any officer grabbed § 87(2)(b) by the neck or made any contact thereto. He denied that Sgt. Moreno grabbed any civilian by the neck. He did not recall hearing any civilian complain that his breathing was restricted (encl. 9a-g). All of the officers denied telling anyone to, “Shut the fuck up,” or hearing another officer say so

§ 87(2)(g)

Therefore, it is recommended that **Allegation A, Allegation B, Allegation E, and Allegation F** be closed as **unsubstantiated**.

Allegation B—Abuse of Authority: In front of § 87(2)(b) PO Melvin Cordero refused to provide his shield number to § 87(2)(b) and § 87(2)(b)

Allegation C—Abuse of Authority: In front of § 87(2)(b) PO Yoan Delacruz refused to provide his shield number to § 87(2)(b) and § 87(2)(b)

At least four requests for the officers’ shield numbers are clearly heard in § 87(2)(b)’s video footage. During his review of the footage during his CCRB interview, § 87(2)(b) identified both § 87(2)(b) and § 87(2)(b)’s voices as making requests. At the 1:12 minute mark of the video, after three distinct requests have been made, Sgt. Moreno is heard providing his shield number. PO Cordero, PO Delacruz and Sgt. Moreno all denied that any civilian requested any of their shield numbers during the incident. Upon reviewing the video footage during their CCRB interviews, they acknowledged that they could hear the requests, but reiterated that they did not hear these requests during the incident. The officers explained that they likely did not hear these requests due to the stress of the situation and their concerted efforts to effect the arrests of § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that **Allegation C and Allegation D** be closed as **unsubstantiated**.

Allegation F—Discourtesy: At the 77th Precinct stationhouse, an officer spoke rudely to

§ 87(2)(b)

Allegation G—Offensive Language: At the 77th Precinct stationhouse, an officer made remarks to § 87(2)(b) based upon his sex.

§ 87(2)(b) said that when he was in the cells at the 77th Precinct stationhouse, he complained about the tightness of his handcuffs, and an officer told him to “shut the fuck up,” “stop being such a pussy,” and “stop being such a bitch.” § 87(2)(b) corroborated these allegations. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations F and G** be closed as **officer unidentified**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date